

[3 & 4 GEO. 5.] *Bishop's Waltham Water Act*, 1913. [Ch. xix.]



CHAPTER xix.

An Act for transferring and vesting the undertaking of the
Bishop's Waltham Waterworks Company Limited to and
in the South Hants Waterworks Company and for other
purposes. A.D. 1913.
[4th July 1913.]

WHEREAS by the Bishop's Waltham Water Order 1894 (in this Act referred to as "the Order of 1894") confirmed by the Water Orders Confirmation Act 1894 the Bishop's Waltham Waterworks Company Limited (in this Act called "the Company") were authorised to maintain and continue the waterworks and works connected therewith belonging to them in the parish of Bishop's Waltham as then existing in the county of Hants and to supply water in that parish:

And whereas the said parish of Bishop's Waltham was by section 4 of the South Hants Water Act 1894 (in this Act referred to as "the Act of 1894") constituted a part of and is within the area of supply of the South Hants Waterworks Company (in this Act called "the South Hants Company") but it was provided by section 5 of that Act that the South Hants Company should not supply water in the said parish of Bishop's Waltham without the previous consent of the Company:

And whereas subsequently to the passing of the Order of 1894 and the Act of 1894 a portion of the parish of Bishop's Waltham was constituted a separate parish under the name of the parish of Curdridge:

And whereas the Company have agreed to sell and transfer their undertaking to the South Hants Company in accordance with the terms and on the conditions set out in the agreement contained in the First Schedule to this Act:

A.D. 1913.

And whereas it is expedient that the said agreement should be confirmed and that the undertaking of the Company should be transferred to the South Hants Company and constituted part of the undertaking of that company:

And whereas the lands and property belonging to the Company upon which the works authorised by the Order of 1894 and described in the first part of the Third Schedule to this Act are situate and the other lands of the Company acquired under the powers of the said Order and adjoining and forming part of such first-mentioned lands are described in the second part of the Third Schedule to this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and
collective
titles.

1. This Act may be cited as the Bishop's Waltham Water Act 1913 and this Act and the South Hants Water Acts 1876 to 1910 and the Order of 1894 as amended by this Act may be jointly cited as the South Hants Water Acts 1876 to 1913.

Interpre-
tation.

2. In this Act—

“The Company” means the Bishop's Waltham Waterworks Company Limited;

“The South Hants Company” means the South Hants Waterworks Company;

“The Order of 1894” means the Bishop's Waltham Water Order 1894 confirmed by the Water Orders Confirmation Act 1894;

“The Act of 1894” means the South Hants Water Act 1894;

“The date of transfer” means the first day of January nineteen hundred and fourteen;

“The undertaking of the Company” means and includes the lands and works described in the Third Schedule to this Act and the buildings hereditaments water-

works reservoirs wells water supplies pumping engines machinery mains pipes valves flush-outs apparatus plant works conveniences stores coal tools and book debts owing to the Company as on the date of transfer and other effects of the Company as the same shall exist at the date of transfer and the rights powers wayleaves easements and privileges of the Company and also all deeds leases and other documents and maps plans contracts and agreements relating to the undertaking of the Company existing on the date of transfer and also the goodwill of the Company and all books of account books ledgers and papers (excepting only the share register transfer book and other books and papers relating solely to the shareholding in the Company) and all other property real and personal of the Company as on the date of transfer (except the reserve fund if any and undivided profits of the Company and the cash at their bankers);

A.D. 1913.

"The scheduled agreement" means the agreement dated the twenty-fourth day of October one thousand nine hundred and twelve and made between the Company and the South Hants Company as set out in the First Schedule to this Act.

3. Subject to the provisions of this Act the scheduled agreement is hereby confirmed and made binding on the Company and the South Hants Company and shall have effect and may be carried out as if it formed part of this Act and the Company and the South Hants Company may and shall respectively do all things necessary for carrying the said agreement into effect.

Confirming agreement for sale of Company's undertaking.

4.—(1) As from the date of transfer the undertaking of the Company shall by virtue of this Act be transferred to and vested in the South Hants Company upon and subject to the terms and conditions in this Act contained and shall as and from the date of transfer form part of the undertaking of the South Hants Company.

Transfer of property of Company.

(2) The production of a King's Printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by two directors of the Company or by the cashier of the Bank of England shall (unless it be proved

[Ch. xix.] *Bishop's Waltham Water Act, 1913.* [3 & 4 GEO. 5.]

A.D. 1913. that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the South Hants Company of the undertaking of the Company.

(3) If from any cause the South Hants Company are unable to obtain the receipt of two directors of the Company for the purchase money as provided in clause 5 of the scheduled agreement they may pay the same into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the South Hants Company by the cashier of the said bank for the purchase money which shall have the same effect as the receipt of two directors of the Company.

Repeal of
section 5 of
Act of 1894.

5. As from the date of transfer section 5 (For protection of the Bishop's Waltham Water Company) of the Act of 1894 is hereby repealed.

Contracts to
be binding.

6. Subject to the provisions of this Act all agreements contracts conveyances deeds and other instruments affecting the Company and in force at the date of the passing of this Act shall from such date be as binding and of as full force and effect against or in favour of the South Hants Company and may be enforced as fully and effectually as if instead of the Company the South Hants Company had been the party thereto.

Books &c.
to remain
evidence.

7. All books and documents which if the undertaking of the Company had not been transferred to and vested in the South Hants Company would have been evidence in respect of any matter for or against the Company shall after the date of transfer be admitted in evidence in respect of the same and the like matter for or against the South Hants Company.

Pending
actions &c.

8. If at the date of the passing of this Act any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the Company the same shall not abate or be discontinued or in any-wise prejudicially affected by reason of the transfer to and vesting in the South Hants Company of the undertaking of the Company nor of anything in this Act but the same may be continued prosecuted and enforced against or in favour of the South Hants Company as and when it might have been continued prosecuted

and enforced against or in favour of the Company as if this Act had not been passed but not further or otherwise. A.D. 1913.

9. The Order of 1894 shall as from the date of transfer extend and apply to the South Hants Company instead of the Company except the sections thereof mentioned in the Second Schedule to this Act which are hereby repealed as from the date of transfer and the Company shall thereafter subsist only for the purpose of winding up their affairs. Application and repeal of parts of Order of 1894 and dissolution of Company.

10. From and after the date of transfer the rates and charges to be charged by the South Hants Company for the supply of water within the parishes of Bishop's Waltham and Curdridge shall be the rates and charges authorised by the South Hants Water Acts 1876 to 1910 Provided that nothing in this Act contained shall authorise the South Hants Company to demand any rate or charge in excess of the amount which otherwise would have been payable under the provisions of the Order of 1894 if this Act had not been passed. Rates of supply in Bishop's Waltham and Curdridge.

11. The South Hants Company may—

- (1) Maintain and continue and renew alter enlarge extend and improve the waterworks of the Company described in the first part of the Third Schedule to this Act and they may also make and maintain renew alter enlarge extend and improve the works connected therewith with all necessary wells shafts adits conduits mains pipes sluices pumps engines engine-houses machinery tanks valves apparatus and works connected therewith in or under the lands of the Company described in the second part of the Third Schedule to this Act; and
- (2) Collect pump take divert convey impound use and appropriate for the purposes of their undertaking all or any of the underground springs and waters which will or may be taken or intercepted in or under the lands of the Company described in the second part of the Third Schedule to this Act. Power to maintain and continue works and take waters.

12. The South Hants Company shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament. Limiting powers of South Hants Company to abstract water.

A.D. 1913.

Parishes of Bishop's Waltham and Curdridge to have priority of supply from Company's existing works.

Provisions where existing sources of supply affected.

13. The South Hants Company shall before supplying outside the parishes of Bishop's Waltham and Curdridge water obtained by means of the works well and pumping station of the Company as described in Part I. of the Third Schedule to this Act provide for the use of the inhabitants of those said parishes for the time being requiring and taking a supply of water from the South Hants Company in accordance with the provisions of section 35 of the Waterworks Clauses Act 1847 such a supply of water so obtained as may from time to time be lawfully required by such inhabitants for sanitary domestic and trade requirements.

14.—(1) If it shall be proved by the owner as hereinafter in this section defined that the pumping by the South Hants Company at the well and pumping station of the Company described in Part I. of the Third Schedule to this Act or at any other well or pumping station on the lands described in Part II. of that schedule has caused any diminution of the supply in any well pond spring or watering place in the parishes of Bishop's Waltham and Curdridge existing at the time of the passing of this Act as an effective source of supply such well pond spring or watering place being situate within a radius of one mile and a half from the said wells and pumping stations the South Hants Company shall (unless they make good such diminution or make compensation therefor under subsections (2) or (3) of this section) upon the written request of the owner of such well pond spring or watering place as aforesaid (in this section referred to as "the owner" which term shall include any lessee or occupier) afford to the owner a supply of water equal to the amount of such diminution as so proved at such cost or rate (if any) as that the total cost to the owner of obtaining his full supply shall be the same after as before the date of transfer and upon such other terms as may be agreed or failing agreement may be settled by arbitration as hereinafter provided.

(2) The South Hants Company may if they think fit in lieu of affording a supply of water equal to the diminution of the supply in such well deepen the affected well or make such borings therein or headings therefrom as will increase the supply so as to make good the said diminution and the owner shall without making any charge therefor give the South Hants Company access and every facility for carrying out such deepening borings or headings and in the event of such deepening borings or headings increasing the cost to the owner

of obtaining or continuing to obtain such supply the South Hants Company shall pay to the owner the amount of such increase. A.D. 1913.

(3) If the South Hants Company do not afford a supply equal to the diminution they shall make compensation in money to the owner for such diminution so far as the same is not made good by the South Hants Company and they shall also make the like compensation for any injury caused to the owner by the exercise by the South Hants Company of the powers conferred by the last preceding subsection the amount of compensation to be settled in case of difference by arbitration as hereinafter provided.

(4) The South Hants Company shall not be liable in respect of any claim made by the owner under this section if he shall have failed to afford to the officers servants or other representatives of the South Hants Company at all reasonable times after the date of the transfer access to the well pond spring or watering place in respect of which the claim is made for the purpose of ascertaining particulars thereof and the level of the water therein.

(5) Any question or dispute arising under this section shall be referred to and determined by arbitration in manner provided by the Arbitration Act 1889 or any statutory modification thereof for the time being in force.

15. For the benefit and protection of the owners or occupiers for the time being of the mills known as Abbey Mill Durley Mill and Botley Mill and the estate known as the Thicketts (in this section called "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the South Hants Company have effect (that is to say):—

For protection of mill and riparian owners.

- (1) Nothing in this Act or in the Waterworks Clauses Acts 1847 and 1863 shall exempt the South Hants Company from paying compensation for any damage done to the owners mills water meadows or water-cress beds in or upon or in connection with the River Hamble by reason of the pumping operations of the South Hants Company at the well and pumping station of the Company described in Part I. of the Third Schedule to this Act or at any other well

• A.D. 1913.

or pumping station on the land described in Part II. of that schedule :

(2) If the flow of water of the River Hamble is at any time diminished by reason of any pumping operations of the South Hants Company in connection with the said wells and pumping stations abstracting water from the River Hamble the South Hants Company shall pay compensation to the owner for any loss or damage that may be done to or arise in connection with the said mills water meadows or watercress beds and in the event of any difference between the owner and the South Hants Company such difference shall be referred to and determined by arbitration in manner provided by the Arbitration Act 1889 or any statutory modification thereof for the time being in force :

(3) The provisions of this section for the protection of the owner shall be in addition to and not by way of substitution for any of the provisions of the Waterworks Clauses Acts 1847 and 1863.

Application
of funds of
South Hants
Company.

16. The South Hants Company may apply to the purposes of this Act and the scheduled agreement any of the moneys which they now have in their hands or which they have power to raise by shares stocks debenture stocks or borrowing by virtue of the South Hants Water Acts 1876 to 1910 and which may not be required for the purposes to which they are by those Acts made specially applicable.

Copy of Act
to be regis-
tered.

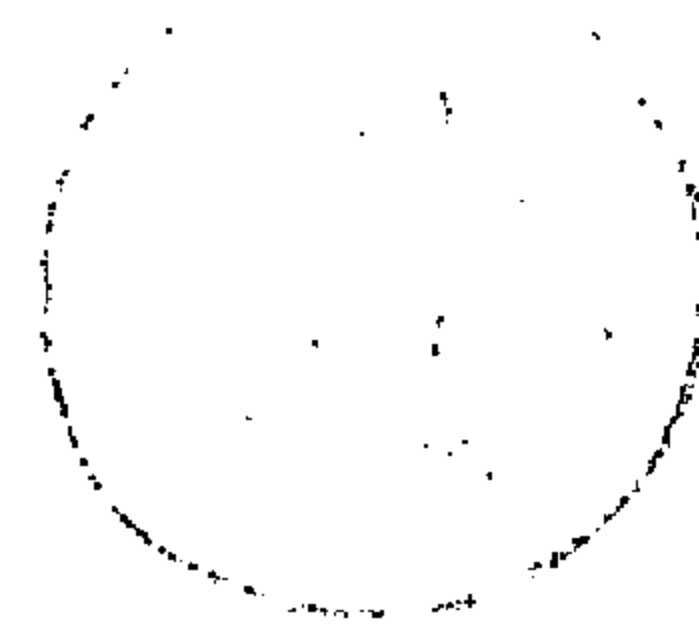
17. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on

[3 & 4 GEO. 5.] *Bishop's Waltham Water Act*, 1913. [Ch. xix.]

registration of any document other than a memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding-up in England. A.D. 1913.

18. All costs charges and expenses of and incident to the preparing for applying for obtaining and passing of this Act or otherwise in relation thereto shall to the extent and subject to the provisions mentioned in Article 17 of the scheduled agreement be paid by the South Hants Company. Costs of Act.



A.D. 1913.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

Referred to in the preamble and in the sections of this Act of which the marginal notes are "Interpretation" and "Confirming agreement for sale of Company's undertaking."

Stamp.

One
hundred
and nineteen
pounds.

AN AGREEMENT made the twenty-fourth day of October one thousand nine hundred and twelve between the BISHOP'S WALTHAM WATERWORKS COMPANY LIMITED whose registered office is at 29A Jewry Street in the city of Winchester (hereinafter called "the Selling Company") of the one part and the SOUTH HANTS WATERWORKS COMPANY (hereinafter called "the Purchasing Company") of the other part.

WHEREBY the Selling Company so far as relates to the acts on its part to be performed agrees with the Purchasing Company and the Purchasing Company so far as relates to the acts on its part to be performed agrees with the Selling Company as follows (that is to say):—

1. Subject to the sanction of Parliament to be obtained as hereinafter provided the Selling Company shall sell and the Purchasing Company shall purchase the undertaking of the Selling Company upon the terms and conditions hereinafter appearing and such sale and purchase shall take effect as from the first day of January one thousand nine hundred and fourteen (hereinafter referred to as "the date of transfer") The undertaking of the Selling Company shall comprise and include all the lands buildings hereditaments waterworks reservoirs wells water supplies pumping engines machinery mains pipes valves flush-outs apparatus plant works conveniences stores coal tools book debts owing to the Selling Company as on the date of transfer and other effects of the Selling Company as the same shall exist on the date of transfer and the rights powers and privileges of the Selling Company and also all deeds leases and other documents and maps plans contracts and agreements relating to the undertaking of the Selling Company existing on the date of transfer and also the goodwill of the Selling Company and all books of account books ledgers and papers (excepting only the share register transfer book and other books and papers relating solely to the shareholding in the Selling Company) and all other property real and personal of the Selling Company as on the

date of transfer (except the reserve fund if any and undivided profits of the Selling Company and the cash at their bankers) All which premises hereby agreed to be sold and purchased are hereinafter referred to as "the undertaking." A.D. 1913.

2. As the consideration for the said sale the Purchasing Company shall pay to the Selling Company in cash (A) the sum of eleven thousand two hundred and twelve pounds and ten shillings (B) the sum by which the capital expenditure of the Selling Company shall exceed the issued capital of the Selling Company on the thirty-first day of December one thousand nine hundred and eleven and the certificate of the accountant and auditor of the Selling Company shall be conclusive as to the amount of this expenditure and be binding on both parties hereto and such further sum as shall represent capital expenditure from the thirty-first day of December one thousand nine hundred and eleven and the certificate of the accountant and auditor of the Selling Company or if required by the Purchasing Company of any independent chartered accountant to be agreed upon or failing agreement to be nominated at the request of either company by the President of the Institution of Chartered Accountants shall be conclusive as to the amount of the said expenditure and binding on both parties hereto (c) the sum at which the general stores coals and tools of the Selling Company shall be valued at on the date of transfer such valuation to be made on behalf of the Selling Company by their chairman Henry Coleman Head and on behalf of the Purchasing Company by their engineer and manager and if they fail to agree by an umpire to be appointed by them whose decision shall be final (d) the sum at which the book debts owing to the Selling Company and recoverable by it on the date of transfer shall be valued by Henry Coleman Head on behalf of the Selling Company and by Ernest George Burnett the secretary of the Purchasing Company and if they fail to agree by an umpire appointed by them whose decision shall be final.

3. The Purchasing Company shall without investigation objection or requisition accept such title as the Selling Company has to the undertaking.

4. The Purchasing Company having had an opportunity of inspecting the lease under which part of the lands of the Selling Company is held and also the special agreements as to or concerning the supply or delivery of water by the Selling Company now existing shall be deemed to have notice of all the contents and to take subject to the terms of the said leases and agreements.

5. The said sale and purchase shall be completed and the said sums payable under clause 2 hereof (hereinafter called "the purchase moneys") shall be paid to the Selling Company on the date of transfer at the registered office of the Company at No. 29A Jewry Street in the city of Winchester and on payment of the purchase moneys the

A.D. 1913. Selling Company and all other necessary parties (if any) shall execute and do all such assurances and things for vesting the undertaking in the Purchasing Company and giving to it the full benefit of this agreement as shall be necessary and shall deliver to the Purchasing Company all documents and things hereinbefore referred to and included in the undertaking (except the share register and transfer book) Provided always that if the minute books are handed over they shall be at all times open to the inspection of the Selling Company for any purposes of the winding up. A receipt in writing under the hands of any two directors of the Selling Company for the purchase moneys shall be a sufficient discharge to the Purchasing Company for the same and the Purchasing Company shall not be concerned to see to the application of the same nor be liable for any misapplication or non-application of the same. After the completion of the purchase the Selling Company shall subsist only for the winding up of its affairs.

6. If from any cause whatever other than wilful default on the part of the Selling Company the said sale and purchase shall not be completed on the date of transfer the Purchasing Company shall pay to the Selling Company interest on the purchase moneys at the rate of five pounds per centum per annum from the date of transfer until the said sale and purchase shall be completed.

7. The Selling Company shall until the date of transfer carry on and manage the undertaking as heretofore so as efficiently to maintain the same as a going concern. Provided that the Selling Company shall not after the date hereof incur any further capital expenditure nor enter into agreements with other parties other than the usual and regular agreements without the consent of the Purchasing Company which consent shall not be unreasonably withheld.

8. The Selling Company shall be entitled to all the rents and profits and shall pay and discharge all the debts expenses outgoings and liabilities of or attaching to the undertaking up to the date of transfer and as from that date the Purchasing Company shall be entitled to all the rents and profits and shall pay all the expenses and outgoings of the undertaking and the said rents profits debts expenses and outgoings shall (if necessary) be apportioned for the purpose of this provision but the Purchasing Company shall not be entitled to the actual possession or receipt of the rents and profits until the date of completion of the said sale and purchase.

9. Every subsisting insurance against fire shall from the date hereof be for the benefit of the Purchasing Company subject to the consent of the office and subject to the said sale and purchase being completed and to the Purchasing Company paying the proportionate part of the premium for the unexpired term of the insurance but the Selling Company shall keep up or renew any insurance now in force which otherwise would have expired pending completion of the purchase.

[3 & 4. GEO. 5.] *Bishop's Waltham Water Act, 1913.* [Ch. xix.]

A.D. 1913.

10. In the event of any of the premises and buildings plant and other machinery of the Selling Company being injured or damaged by fire before the date of transfer then the Purchasing Company shall forthwith pay over to the Selling Company such moneys as they shall receive by virtue of the insurances mentioned in the preceding clause and the Selling Company shall immediately apply the same in reinstating and restoring the insured premises to their former state and condition.

11. The Purchasing Company shall not be under any liability to take over any officer or employee of the Selling Company or to compensate any of them for loss of office or employment and the Selling Company hereby indemnifies the Purchasing Company from and against all claims by any such officer or employee.

12. This agreement (save and except clause 17 hereof) is conditional on the same being ratified by special resolution of the Selling Company and Purchasing Company respectively and if this agreement is not so ratified by the Selling Company within four weeks from the date hereof this agreement (save and except clause 17 hereof) shall be void.

13. The Selling Company shall promote and use its best endeavour to procure the passing in the session of Parliament to be held in the year one thousand nine hundred and thirteen of a Bill for the purpose of obtaining the confirmation of this agreement and the necessary powers for carrying it into effect and the Purchasing Company shall aid and assist the Selling Company in obtaining the said intended Act and if and so far as may be necessary or may be required by the Purchasing Company they shall be associated with the Selling Company and act as joint promoters of the said Bill.

14. The Purchasing Company shall have the general control direction and management of all proceedings in connection with the promotion of the said Bill and as to the form and contents thereof and the necessary parliamentary notices and the proposed Bill itself shall be submitted to and approved by them and they shall be consulted in the selection and retainer of counsel and witnesses and the fixing of their fees and the Purchasing Company shall reimburse to the Selling Company the amount of such fees whether the same be allowed on taxation or not.

15. This agreement shall be scheduled to the said Bill and (save and except clause 17 hereof) is made subject to such alterations as Parliament may think fit to make therein but if Parliament or the Committee on the Bill make any material alteration in this agreement it shall be competent to either party hereto to withdraw therefrom (save and except clause 17 hereof) and if either House of Parliament shall impose or any opponents to the Bill shall seek to impose any clauses or conditions in the said Bill which the Purchasing Company

A.D. 1913. may consider unreasonable or detrimental to the interest of their company then the Selling Company shall at the request in writing of the Purchasing Company withdraw the said Bill and upon such withdrawal this agreement shall be null and void (save and except clause 17 hereof).

16. If the Bill to be promoted by the Selling Company as aforesaid be not passed by Parliament in the session of one thousand nine hundred and thirteen this agreement (save and except clause 17 hereof) shall be void. Provided always that if owing to the prorogation or dissolution of Parliament it is impossible to obtain the confirmation of this agreement by Parliament during the session of Parliament to be holden in the year one thousand nine hundred and thirteen the Selling Company agrees and undertakes to promote a similar Bill in the next ensuing session of Parliament and in that event the provisions of this agreement shall *mutatis mutandis* be extended and deemed to apply to such further promotion. The date of transfer to be the first day of January one thousand nine hundred and fifteen.

17. The usual and proper costs and expenses already incurred or hereafter to be incurred by the Selling Company in reference to the negotiations for and the preparations execution completion and stamping of this agreement or consequent thereon or in reference to the ratification or attempted ratification of this agreement by a special resolution of the Selling Company or in reference to the promotion of the said Bill or the passage (whether opposed or unopposed) of the said Bill through both Houses of Parliament or consequent thereon or in reference to the said sale and purchase or the completion thereof or in reference to the winding up of the Selling Company limited as hereinafter provided or in reference to any other matter or proceeding which may be necessary or proper for giving or attempting to give effect to this agreement or procuring or attempting to procure the ratification thereof by a special resolution of the Selling Company or the approval thereof by Parliament shall whether the said sale and purchase shall be completed or not and whatever may be the cause of the same not being completed be paid by the Purchasing Company to the Selling Company on demand such costs and expenses to be taxed by the proper authority if the Purchasing Company so require but the cost attending the winding up and liquidation of the Selling Company payable by the Purchasing Company under this clause shall not exceed the sum of one hundred pounds.

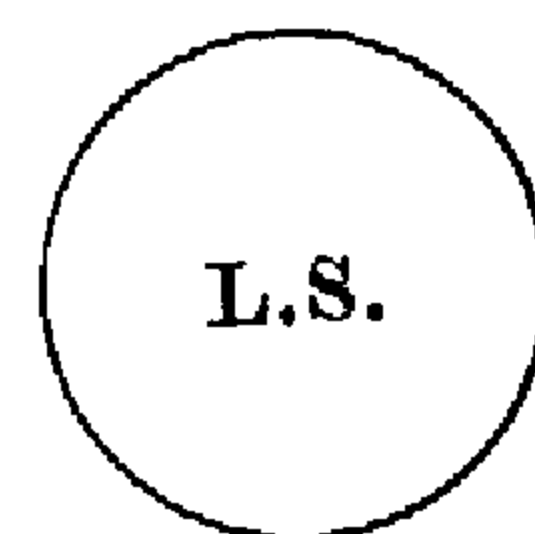
18. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to anything not fully provided for or as to the provisions proper to be inserted in the Bill to carry it into effect or as to the rights liabilities or duties of either party hereunder the same shall be referred to the President of the Institution of Civil Engineers

[3 & 4 GEO. 5.] *Bishop's Waltham Water Act, 1913.* [Ch. xix.]

as arbitrator or failing him to an arbitrator to be appointed by the parties hereto in case they can agree upon one and in default of agreement to two arbitrators one to be appointed by each party to the reference and this agreement shall be deemed to be a submission to arbitration within the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force the provisions whereof shall apply so far as applicable. A.D. 1913.

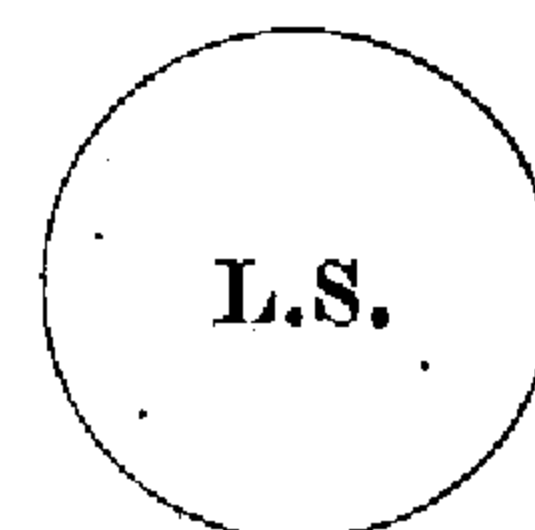
In witness whereof the common seals of the Bishop's Waltham Waterworks Company Limited and the South Hants Waterworks Company were hereunto affixed the day and year first above written.

The common seal of the Bishop's Waltham Water-
works Company Limited was hereunto affixed in
the presence of



H. C. HEAD }
S. J. STIFF } Directors.
J. CHARLES WARNER Secretary.

The common seal of the South Hants Waterworks
Company was hereunto affixed in the presence of



R. S. HANKINSON }
J. J. BURNETT } Directors.
A. J. CORSE SCOTT }
E. G. BURNETT Secretary.

THE SECOND SCHEDULE.

SECTIONS OF THE ORDER OF 1894 REPEALED BY THE SECTION
OF THIS ACT OF WHICH THE MARGINAL NOTE IS
"APPLICATION AND REPEAL OF PARTS OF ORDER OF 1894
AND DISSOLUTION OF COMPANY."

NUMBER OF SECTION,

Sections 6 to 17.
Section 20,
Sections 25 to 42.

A.D. 1913.

THE THIRD SCHEDULE.

Referred to in the sections of this Act of which the marginal notes are "Interpretation" and "Power to maintain and continue works and take waters."

PART I.

The waterworks of the Company situate wholly in the parish of Bishop's Waltham in the county of Southampton:—

- (a) An engine-house and well with pumps and other works and conveniences situate in a chalk pit immediately to the westward of Northbrook Farm all in the said parish of Bishop's Waltham aforesaid:
- (b) A service reservoir situate in a field immediately to the northward and at a distance of three hundred yards or thereabouts from Vernon Hill House in the said parish of Bishop's Waltham:
- (c) A conduit or line of pipes commencing within the above-mentioned engine-house and extending for a distance of one thousand yards or thereabouts and terminating in the reservoir above described in the said parish of Bishop's Waltham.

PART II.

DESCRIPTION OF LANDS OF THE COMPANY.

(a) Certain lands in the parish of Bishop's Waltham in the county of Southampton comprising portions of the enclosures Nos. 321 and 329 on the $\frac{1}{2500}$ Ordnance map (1909 edition) of the said parish comprising two acres one rood and nine poles.

(b) The whole of the enclosure No. 248a on the said Ordnance map of the said parish comprising one rood and twenty-six poles.

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